BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI
BENCH -III

CAA-90/ (ND)/2018

CONNECTED WITH

CA (CAA)-39(ND)/2018

Coram: SHRI R. VARADHARAJAN, MEMBER (JUDICIAL)

Dr. V. K. SUBBURAJ, MEMBER (TECHNICAL)

In the matter of:

SECTIONS 230 to 232 OF THE COMPANIES ACT, 2013

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

VINFLEX PRODUCTS PVT LTD
(TRANSFEROR COMPANY)

AND

ALASKA RUBBERS PVT LTD
(TRANSFEREE COMPANY)

MEMO OF PARTIES

VINFLEX PRODUCTS PVT. LTD.

Company Incorporated under Companies Act 1956

Having its registered office at:

79, Kailash Hills, East of Kailash,

New Delhi-110065.

...TRANSFEROR COMPANY/ PETITIONER NO.1

AND

ALASKA RUBBERS PVT. LTD.

Company Incorporated under Companies Act 1956

Having its registered office at:

79, Kailash Hills, East of Kailash,

New Delhi-110065.

...TRANSFEREE COMPANY/PETITIONER NO.2

Advocate for Petitioner: Mr. Alok Kumar Kuchhal, Advocate

ORDER

Date:15.01.2019

1. This Company Petition filed by the Petitioner Companies is coming before us for admission and for fixing a date of hearing of the main Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petition and calling for the objections, if any, to the Scheme of Arrangement by way of Amalgamation (hereinafter for brevity referred to as "Scheme") contemplated between the Transferor Company and the Transferee Company. From the records, it is seen that the First Motion application was filed before this Tribunal vide CA (CAA) No. 39 (ND) 2018 and based on such application moved under Sections 230-232 of the Companies Act, 2013, directions were issued by this Tribunal, where in the requirement of convening meetings secured creditors, equity shareholders and unsecured creditors of the Transferor Company were dispensed with and the meeting of the shareholders, secured creditors and unsecured creditors were directed to be convened. In compliance with the directions issued by this Tribunal on 23.04.2018 and 08.05.2018, the Petitioner Company had held the meeting as contemplated by the said order on 22.06.2018 and to which

effect the Chairperson appointed by this Tribunal have also filed report as detailed hereunder:

MEETING OF	EQUITY SHAREHOLDERS OF M/S VINFLEX PRODUCTS PRIVATE LIMITED, THE TRANFEROR COMPANY AND EQUITY SHAREHOLDERS, SECURED CREDITORS AND UNSECURED CREDITORS OF M/S ALASKA RUBBERS PRIVATE LIMITED, THE TRANSFEREE COMPANY
CHAIRPERSON	MR. S.P.SINGH CHAWLA, ADVOCATE
ALTERNATE CHARIPERSON	MS. SHELLY KHANNA, ADVOCATE
SCRUTINIZER	MR. ABHINAV BHATIA, COMPANY SECRETARY
CHAIRPERSONS REPORT FILED ON	29.06.2018
SCRUTINIZERS REPORT FILED ON	29.06.2018

2. Subsequent to the conduct of the meetings as directed, now this petition on second motion filed on 06.07.2018 is coming up before us for fixing a

date of hearing as well as other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016 brought into effect and on and from 15.12.2016 and it is now hereby ordered as follows:

(i) The date of hearing of the Petition filed by the Petitioner Companies for the approval of the Scheme is fixed on 28.02.2019.

(ii) Notice of the hearing shall be advertised in the newspapers namely, Financial Express (English, Delhi edition) and Jansatta in vernacular (Hindi, Delhi edition) not less than 10 days before the aforesaid date fixed for hearing.

(iii) In addition to the above public notice, the Petitioner Companies shall serve the notice of the Petition on the following Authorities namely, Central Government, the Income Tax Authorities, Registrar of Companies NCT Delhi & Haryana, Official liquidator as well as other sectoral regulators, if any, who may govern the working of the Transferee Company involved in the Scheme atleast 30 days before the date fixed for hearing of the above Petition.

(iv) Further, notice shall also be served to Objector(s) or to their representative as contemplated under Sub-Section(4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith atleast 15 days before the date fixed for hearing.

(v) The Petitioner Companies shall atleast 7 days before the date of hearing of the Petition file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulators as well as to Objectors, if any.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notice has been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Companies shall comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

(viii) The next date of hearing of the Petition shall be on 28.02.2019 for the consideration of the approval of the Scheme of Amalgamation as contemplated between the Transferor Company and the Transferee Company.

-Sd-

(DR. V.K. SUBBURAJ)
MEMBER (TECHNICAL)

-Sd-

(R. VARADHARAJAN)
MEMBER (JUDICIAL)

Deepak